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OLIVIER *v.* CITY OF BRANDON, MISSISSIPPI

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 24–993. Argued December 3, 2025—Decided March 20, 2026

Petitioner Gabriel Olivier is a street preacher in Mississippi who believes that sharing his religious views with fellow citizens is an important part of exercising his faith. His vocation sometimes took him to the sidewalks near an amphitheater in the City of Brandon, where he could find sizable audiences attending events. In 2019, the City adopted an ordinance requiring all individuals or groups engaging in "protests" or "demonstrations," at around the time events were scheduled, to stay within a "designated protest area." In 2021, Olivier was arrested for violating that ordinance. He pleaded no contest in municipal court. The court imposed a $304 fine, one year of probation, and 10 days of imprisonment to be served only if he violated the ordinance during his probation. Olivier did not appeal, paid the fine, and served no prison time. Because he still wanted to preach near the amphitheater, Olivier filed suit against the City in federal court under 42 U. S. C. § 1983, alleging that the city ordinance violates the Free Speech Clause of the First Amendment by consigning him and other speakers to the amphitheater's protest area. The complaint seeks, as a remedy, a declaration that the ordinance infringes the First Amendment and an injunction preventing city officials from enforcing the ordinance in the future. In other words, the relief requested is only prospective; Olivier seeks neither the reversal of, nor compensation for, his prior conviction.

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The parties contested in the lower courts whether this Court's decision in *Heck* v. *Humphrey*, 512 U. S. 477—which prohibits the use of § 1983 to challenge the validity of a prior conviction or sentence so as to obtain release from custody or monetary damages—bars the suit from going forward. On the City's view of *Heck*, a person previously convicted of violating a statute cannot challenge its constitutionality under § 1983 because success in the suit would cast doubt on the prior conviction's correctness. On Olivier's contrary view, *Heck* does not apply when a plaintiff seeks wholly prospective relief, rather than relief relating to the prior conviction. The District Court agreed with the City's understanding of *Heck* and found Olivier's suit barred. The Court of Appeals for the Fifth Circuit affirmed on the same reasoning.

Held: Olivier's suit seeking purely prospective relief—an injunction stopping officials from enforcing an ordinance in the future—can proceed,

notwithstanding Olivier's prior conviction for violating that ordinance; *Heck* does not hold otherwise. Pp. 560–567.

(a) Before the Court's decision in *Heck*, the City would have had no plausible basis for claiming Olivier's suit is barred. That type of suit falls within § 1983's heartland: Assuming a credible threat of prosecution, a plaintiff may bring a § 1983 action to challenge a local law as violating the Constitution and to prevent that law's future enforcement. See, *e. g.*, *Steffel* v. *Thompson*, 415 U. S. 452. In *Wooley* v. *Maynard*, 430 U. S. 705, the Court held that rule to apply even when the plaintiff was previously convicted under the challenged law. The Court explained that because the suit at issue sought "wholly prospective" relief—"only to be free from prosecutions for future violations"—and was "in no way designed to annul the results of a state trial," § 1983 provided an avenue for the plaintiff's claim. *Id.*, at 711. Were it otherwise, the plaintiff would have been trapped "between the Scylla of intentionally flouting state law and the Charybdis of forgoing what he believes to be constitutionally protected activity." *Id.*, at 710.

The Court's decision in *Wooley*, taken alone, would defeat the City's attempt to prevent Olivier's suit from going forward, but the City argues the Court's later decision in *Heck* requires the opposite result. In *Heck*, the Court held that a state prisoner could not use § 1983 to seek damages attributable to his allegedly unconstitutional conviction. The Court reasoned that such a suit in truth mounts a "collateral attack" on the validity of the conviction, and thus intrudes on the habeas statute's domain. 512 U. S., at 485. And such a suit could lead to "parallel litigation" and "conflicting" judgments about the same conduct, with the § 1983 suit suggesting that the plaintiff should be released even as criminal or habeas proceedings found the opposite. *Id.*, at 484. Hence the so-called *Heck* bar on "§ 1983 damages actions that necessarily require the plaintiff to prove the unlawfulness of his conviction or confinement." *Id.*, at 486. "[W]hen a state prisoner seeks damages in a § 1983 suit," the Court went on, "the district court must consider whether a judgment in favor of the plaintiff would necessarily imply the invalidity of his conviction or sentence." *Id.*, at 487.

The Court subsequently drew a line between *Heck*-type claims and those seeking forward-looking relief. In *Edwards* v. *Balisok*, 520 U. S. 641, the Court held that while a state prisoner could not obtain damages for an alleged past violation, a claim for "prospective injunctive relief"—the use of fairer procedures in the future—may "properly be brought under § 1983," because it does not depend on showing the "invalidity of a previous" sentencing decision. *Id.*, at 648. In *Wilkinson* v. *Dotson*, 544 U. S. 74, the Court allowed state prisoners to bring a § 1983 suit requesting an injunction requiring the State to "comply with constitu-

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tional" parole requirements "in the future," determining that such a claim for "*future* relief" was "distant" from "the core of habeas" and so not barred by *Heck*. 544 U. S., at 77, 82. Pp. 560–563.

(b) As in *Balisok* and *Dotson*, Olivier's suit falls outside habeas's core—and likewise outside *Heck*'s concerns. Olivier is not challenging the "validity of [his] conviction or sentence," for the purpose of securing release or obtaining monetary damages. *Nance* v. *Ward*, 597 U. S. 159, 167–168. Instead, he seeks "wholly prospective" relief—"only to be free from prosecutions for future violations" of the ordinance. *Wooley*, 430 U. S., at 711. Because Olivier's suit does not, as habeas suits do, "collateral[ly] attack" the old conviction, it cannot give rise to "parallel litigation" respecting his prior conduct, and does not risk "conflicting" judgments over how that conduct was prosecuted or punished. *Heck*, 512 U. S., at 484, 485. Unlike in *Heck*, Olivier's suit merely attempts to prevent a future prosecution, so the *Heck* bar does not come into play. Pp. 563–564.

(c) The City's main argument to the contrary rests on one sentence in *Heck* that states: "[W]hen a state prisoner seeks damages in a § 1983 suit, the district court must consider whether a judgment in favor of the plaintiff would necessarily imply the invalidity of his conviction or sentence; if it would, the complaint must be dismissed." 512 U. S., at 487. Strictly speaking, the "necessarily imply" language fits: If Olivier succeeds in this suit, it would mean his prior conviction was unconstitutional. But "general language in judicial opinions should be read as referring in context to circumstances similar to [those] then before the Court," *Turkiye Halk Bankasi A. S.* v. *United States*, 598 U. S. 264, 278, and the circumstances here differ from those in *Heck*. The *Heck* language at issue was used to identify claims that were really assaults on a prior conviction, even though involving some indirection. By contrast, there is no looking back in Olivier's suit; both in the allegations made, and in the relief sought, the suit is entirely future oriented—even if success in it shows that something past should not have occurred. The *Heck* Court did not consider such a suit, and the *Heck* language was not meant to address it. *Heck*, properly understood, does not preclude suits that only attempt to prevent future prosecutions. Olivier's suit to enjoin future prosecutions under the city ordinance, so he can return to the amphitheater, may proceed. Pp. 564–567.

Reversed and remanded.

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KAGAN, J., delivered the opinion for a unanimous Court.

Allyson N. Ho argued the cause for petitioner. With her on the briefs were *David W. Casazza*, *Aaron Smith*, *Giuliana C. Cipollone*, *Aly Cox*, *Andrew Y. Ebrahem*, *John N.*

Reed, *Kelly J. Shackelford*, *Jeffrey C. Mateer*, *Hiram S. Sasser III*, *David J. Hacker*, *Nathan W. Kellum*, and *Patrick J. Fuster*.

Ashley Robertson argued the cause for the United States as *amicus curiae* supporting vacatur. With her on the brief were *Solicitor General Sauer*, *Assistant Attorney General Dhillon*, *Deputy Solicitor General Gannon*, *Principal Deputy Assistant Attorney General Osete*, *Andrew Braniff*, and *Brant S. Levine*.

G. Todd Butler argued the cause for respondent. With him on the brief was *Mallory K. Bland*.*

JUSTICE KAGAN delivered the opinion of the Court.

Petitioner Gabriel Olivier was once convicted of violating a city ordinance restricting expressive activity near a public

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*Briefs of *amici curiae* urging reversal were filed for the American Center for Law and Justice by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Andrew J. Ekonomou*, *Walter M. Weber*, and *Liam R. Harrell*; for the Cato Institute by *Matthew P. Cavedon*; for the Christian Legal Society et al. by *Richard G. Parker* and *Colleen E. Roh Sinzdak*; for the Foundation for Individual Rights and Expression by *Joshua A. House*; for the Foundation for Moral Law by *John A. Eidsmoe*; for the Human Rights Defense Center et al. by *Tobias S. Loss-Eaton*, *Bruce Plaxen*, and *Jeffrey R. White*; for the International Society for Krishna Consciousness (ISKCON) by *David R. Dorey* and *William Wagner*; for the Liberty Justice Center by *Jeffrey Schwab*; for the Manhattan Institute by *Ilya Shapiro*; for the National Institute of Family and Life Advocates et al. by *Catherine Short* and *Sheila A. Green*; for the Religious Freedom Institute by *Daniel M. Sullivan* and *Brian T. Goldman*; for the Southeastern Legal Foundation by *Thomas R. McCarthy*, *Tiffany H. Bates*, *Kimberly S. Hermann*, and *Celia Howard O'Leary*; for the Young America's Foundation by *Madison Leigh Hahn*; for Stephen Nylen et al. by *Joshua C. McDaniel*; for Chike Uzuegbunam by *Dominic E. Draye*, *John J. Bursch*, *Rory T. Gray*, and *Travis C. Barham*; and for Erma Wilson by *Jaba Tsitsuashvili* and *Robert McNamara*.

Briefs of *amici curiae* urging affirmance were filed for the Local Government Legal Center by *R. Trent McCotter*; and for the Texas Association of Counties by *Mike Thompson, Jr.*, and *Scott M. Tschirhart*.

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